

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUOE054815: CODY MAC GREEN vs WESTLAKE COACH COMPANY, LLC

08/12/2026 in Department 43

**Motion TO LIFT STAY FOR BINDING ARBITRATION DUE TO DEFENDANT NON
PAYMENT OF ARBITRATION FEES**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: P's Motion to Lift Stay for Binding Arbitration

Tentative Ruling: Plaintiff's Motion to Lift Stay for Binding Arbitration is continued to September 9, 2026. Defendant is ordered to provide admissible evidence to support its argument under *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310 that the failure to pay the arbitration fees timely under section 1281.98 of the Code of Civil Procedure was not due to willful, grossly negligent or fraudulent conduct. The court is unable to determine on the record before it how *Hohenshelt* should be applied in this regard. The supplemental evidence shall be filed with the Court on or before August 28, 2026.

Defendant's argument is predicated on the Declaration of Gary S. Spitzer, stating, "Defendant's delayed payment of the JAMS' invoice was the result of Defendant's accounting department sending the payment check via first class mail which significantly and unexpectedly delayed the receipt by JAMS."

In *Hohenshelt v. Superior Court* (2025) 18 Cal. 5th 310, 332-333, our Supreme Court held:

“[A] nonperforming party is not entitled to relief from forfeiture when its delay was willful, fraudulent, or grossly negligent. But “when it appears that [the party] has acted in good faith, given some reasonable excuse for the delay, and thereafter tendered performance promptly and with reasonable diligence,” equity can excuse nonperformance so long as the breaching party can and does “adequately compensate[]” the nonbreaching party for any harm caused by the delay.”

Defendant has not provided a record demonstrating the date of issuance of the check, evidence of timely mailing or other evidence of reasonable excuse for the delay. The Court will continue the hearing to permit Defendant to establish, through admissible evidence, that the “delayed payment of the JAMS’ invoice was the result of Defendant’s accounting department sending the payment check via first class mail which significantly and unexpectedly delayed the receipt by JAMS” or other reasonable justification for the delay.

The Court also orders Plaintiff’s counsel to file a declaration establishing, through admissible evidence, the legal fees and expenses incurred by Plaintiff related to the bringing of this motion, for the Court to use in determining adequate compensation in the event the motion is granted. The declaration shall be filed with the Court on or before August 28, 2026.

Moving party is ordered to serve notice of the Court’s ruling.